Nehru on the nature of India's obligations to non-citizen Hindus. This 1950s dispute reached its denouement seventy years later with the Modi government's enactment of the politically contentious CAA. Promulgated in August 2020, the legislation amended the Citizenship Act of 1955 to give citizenship to any Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan who chose to come to India.[19] The impulse driving the CAA thus lies in the founding moment of the Jan Sangh itself.

The dispute on Hindu refugees also led to a bitter internal fight within the ruling Congress—between the Nehruvians and the party's own Hindu traditionalists. It eventually came to constitute the single biggest threat Nehru faced to his leadership from within his party after Gandhi's death, until the China war. The outcome of this political battle on what newly democratic India stood for foregrounded the political palimpsest in which the Jan Sangh was created.

Under the Delhi Pact on migrations between East Pakistan and West Bengal, jointly signed by Nehru and Pakistan Prime Minister Liaquat Ali Khan on 8 April 1950, both governments agreed to guarantee the safety of religious minorities on their side.[20] Mookerjee, along with another cabinet minister, M.C. Neogy, resigned from the government in protest the day that Khan was slated to arrive in Delhi.[21] He argued that Pakistani assurances on minority rights were untrustworthy since it was now an Islamic state. He felt that Nehru had acted weakly on the migrant question and went so far as to imply a military solution to protect Hindu minorities —whom he saw as the remnants of the Hindu nation—in East Pakistan.[22] Rather than trusting Pakistan, Mookerjee felt 'it would be better to propose an outright exchange of population', because it was feared Hindus had 'lost all sense of security in Eastern Pakistan'.[23]

Nehru's response was based on a different idea of the nature and function of the Indian state, 'even when those principles were unpopular with the masses'. He told Parliament that 'protection in Pakistan can only be given obviously in Pakistan. We cannot give